

22STCV24812 22STCV24812

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 22STCV24812 Hearing Date: September 24, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Thursday,
September 24, 2026

Department M Calendar

No.

PROCEEDINGS

Michael

Thomas, et al. v. Rafael Ramos Robles, et al.

22STCV24812

1.

Michael Thomas' Motion for Leave to Serve a Late Expert Designation

TENTATIVE RULING

Michael Thomas' Motion for Leave to Serve a Late Expert
Designation is denied without prejudice.

Background

Plaintiffs filed their Complaint
on August 2, 2022. Plaintiffs allege the following facts. Plaintiffs were

involved in a motor vehicle collision with Defendants.

Motion to Leave to Serve a Late Expert Designation

Code Civ. Proc., § 2034.710

states:

(a) On motion of any party

who has failed to submit expert witness information on the date specified in a demand for that exchange, the court may grant leave to submit that information on a later date.

(b) A motion under

subdivision (a) shall be made a sufficient time in advance of the time limit for the completion of discovery under Chapter 8 (commencing with Section 2024.010) to permit the deposition of any expert to whom the motion relates to be taken within that time limit. Under exceptional circumstances, the court may permit the motion to be made at a later time.

(c) The motion shall be

accompanied by a meet and confer declaration under Section 2016.040.

Code Civ. Proc., § 2034.720

states:

The court shall grant leave

to submit tardy expert witness information only if all of the following conditions are satisfied:

(a) The court has taken into

account the extent to which the opposing party has relied on the absence of a list of expert witnesses.

(b) The court has determined

that any party opposing the motion will not be prejudiced in maintaining that party's action or defense on the merits.

(c) The court has determined

that the moving party did all of the following:

(1) Failed to submit the information as the result of mistake, inadvertence, surprise, or excusable neglect.

(2) Sought leave to submit the information promptly after learning of the mistake, inadvertence, surprise, or excusable neglect.

(3) Promptly thereafter served a copy of the proposed expert witness information described in Section 2034.260 on all other parties who have appeared in the action.

(d) The order is conditioned on the moving party making the expert available immediately for a deposition under Article 3 (commencing with Section 2034.410), and on any other terms as may be just, including, but not limited to, leave to any party opposing the motion to designate additional expert witnesses or to elicit additional opinions from those previously designated, a continuance of the trial for a reasonable period of time, and the awarding of costs and litigation expenses to any party opposing the motion.

First, and most fundamentally, Plaintiff has failed to attach a proof of service with this motion. Thus, Plaintiff has failed to establish that Defendants were served with this motion. Second, Plaintiff failed to submit a meet and confer declaration as required by CCP § 2034.710. Third, Plaintiff failed to show that he complied with CCP § 2034.720(c)(3).

Thus, for the foregoing reasons, Plaintiff's motion for leave to serve late expert witness designation is denied without prejudice.

Plaintiff is ordered to give notice of this ruling.